



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 9932
(THIRD CORRECTED COPY)

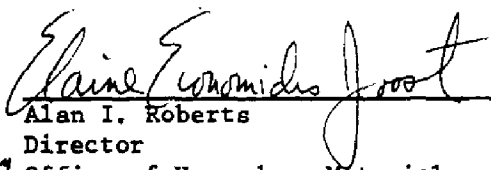
400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 18 1988

1. The U.S. Customs Service, Baltimore, Maryland, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of unclassified explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one time shipment by motor vehicle of explosives, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on the U.S. Customs Service's application of June 22 and July 18, 1988, submitted in accordance with 49 CFR 107.103 and 107.113 based on a protection of life and property.
3. HAZARDOUS MATERIALS (Descriptor and class). Fireworks, special classed as Class B explosive.
4. PROPER SHIPPING NAME (49 CFR 172.101). Fireworks, special.
5. REGULATION AFFECTED. 49 CFR 173.86(b) and 173.51(b).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packagings prescribed are 250 strong fiberboard boxes containing unclassified display fireworks. These boxes must be properly blocked and braced in a freight container.
8. SPECIAL PROVISIONS.
 - a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
 - b. Transportation under this exemption is authorized only from Port East Transfer, Inc., Baltimore, MD to Fire Art Corporation, Clearfield, PA. The carrier, Fire Art Corporation must have a satisfactory safety rating as assigned by the Office of Motor Carrier Safety Field Operations, Federal Highway Administration.
 - c. The only fireworks authorized for shipment under the terms of this exemption are those identified above which are under constructive seizure by the U.S. Customs Service.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. July 31, 1988 or completion of one shipment whichever is earlier.

Issued at Washington, D.C.:


Alan I. Roberts

Director

Acting Office of Hazardous Materials
Transportation

JUL 18 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA